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File No.: EXP202204002

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by HM HOSPITALES 1989, S.A. (hereinafter, the appellant party previously claimed) against the resolution issued by the Director of the Spanish Agency for Data Protection dated March 6, 2023, and based on the following

FACTS

FIRST: On March 6, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202204002, in which it was agreed to uphold the claim for the exercise of rights made by A.A.A. (hereinafter the claiming party) against the now appellant.

SECOND: The resolution now being appealed was duly notified to the appellant party on March 24, 2023, as evidenced by the acknowledgment of receipt in the file.

THIRD: The appellant party has submitted a reconsideration appeal to this Spanish Agency for Data Protection, in which, in summary, it transcribes three paragraphs from different medical professionals to show the deceased's will that her health status not be disclosed.

LEGAL GROUNDS

I

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

In the resolution of this claim, the claimed party, now appellant, was requested to justify the deceased's refusal to allow her family to know her medical history. The appellant did not do so, which is why the claim was upheld. Now, again, it provides transcriptions of the notes from three medical professionals, notes that were previously considered insufficient since they may confirm the deceased's will that her health status not be disclosed at the time of the consultation, but do not prove that she expressly refused to provide her medical history.

In this regard, we must emphasize that there is a difference between the healthcare information that must be provided to the patient, under the terms of Article 15 of Law 41/2002, which may include persons related to her for family or factual reasons, to the extent that she allows it expressly or tacitly; and another matter is the right of access to the medical history, regulated in Article 18 of Law 41/2002, which encompasses much more than healthcare information (access to the documentation of the medical history and obtaining copies of the data contained therein, within the limits of the provision itself) and which requires an express prohibition duly accredited to deny access to persons related to her for family or factual reasons when the patient has passed away.

III

In the present case, alongside the reconsideration appeal, no new relevant documentation has been provided regarding the matters raised, therefore the meaning of the resolution remains unchanged and thus the right is not deemed to be addressed.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the reconsideration appeal filed by HM HOSPITALES 1989, S.A. against the Resolution of this Spanish Agency for Data Protection issued on April 4, 2023, in file EXP202204002.

SECOND: TO NOTIFY this resolution to HM HOSPITALES 1989, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process, an administrative contentious appeal may be filed within two months from the day following the notification of this act, as provided in Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before

the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of the aforementioned legal text.

185-111122

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Director of the Spanish Agency for Data Protection

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